

24SMCV04064 24SMCV04064

County: los-angeles

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Case Number: 24SMCV04064 Hearing Date: August 6, 2026 Dept: O

TENTATIVE RULING

August 6, 2026

24SMCV04064

(Hunter v. Israels)

RELEVANT BACKGROUND

On August 21, 2024, plaintiff James Hunter (Plaintiff) filed the Complaint against defendant Sam Israels (Defendant), alleging four causes of action: battery; assault; false imprisonment; and interference with Plaintiff's civil rights under the Bane Act.

On May 6, 2025, the Court ruled on Defendant's anti-SLAPP motion, granting in part, and denying in part.

On January 9, 2026, this Court entered a minute order awarding Defendant \$30,560.42 in attorney's fees pursuant to Code of Civil Procedure section 425.16(c).

INSTANT MOTIONS

On February 20, 2026, Plaintiff filed the instant motion to "lift stay, reopen discovery, and set trial date." No opposition has been filed.

On February 23, 2026, Plaintiff filed the instant motion for “Stay of Enforcement (Stay of Execution) of January 9, 2026 Attorney Fee Order; Request for Waiver or Reduction of Undertaking.” No opposition has been filed.

On March 12, 2026, Plaintiff filed the instant motion for “Protective Order Regarding Post-Judgment Enforcement Discovery; Request for Interim Stay and Order Vacating April 16, 2026 Inspection Demand.” No opposition has been filed.

DISCUSSION

A. Motion to Lift Stay, Reopen Discovery, and Set Trial

Plaintiff seeks orders to lift the stay, reopen discovery, and set a trial date. The Court finds no basis for the relief requested. With respect to a stay, Plaintiff argues that “fundamental fairness demands lifting the stay” and cites only the Court’s inherent authority to provide for the orderly conduct of proceedings under Code of Civil Procedure Section 128(a)(3). This does not adequately support Plaintiff’s position. With respect to discovery, Plaintiff generally cites Code of Civil Procedure section 2024.050 without providing a valid basis for the relief requested or addressing subdivisions (b)(1)-(4). (See Code Civ. Proc., 2024.050.) Lastly, with respect to the trial date, Plaintiff cites California Rules of Court, rule 3.1332, which pertains to the continuance of a trial date, which is not what Plaintiff is requesting.

Accordingly, Plaintiff’s motion is DENIED.

B. Motion for Stay of Enforcement of January 9, 2026 Fee Order

Plaintiff requests orders staying enforcement of the January 9, 2026 order awarding attorney’s fees and waiving, or reducing undertaking. Plaintiff cites Code of Civil Procedure sections 128, 916, 917.1, 918, and 995.240. Plaintiff also contends that the Court has discretion to waive the undertaking for an indigent litigant under *Sarkany v. West* (2022) 82 Cal.App.5th 801. The Court finds that a

stay is appropriate with respect to the January 9, 2026, order because Plaintiff has filed an appeal regarding same. (See Notice of Appeal filed 2/23/26; Code Civ. Proc., § 916(a) ["the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order."].) Since Plaintiff requests a reduction of the undertaking in the alternative, the Court does not address Plaintiff's arguments regarding same.

Accordingly, Plaintiff's motion is GRANTED.

C. Motion for Protective Order, Stay,
and Order Vacating April 16, 2026 Judgment Regarding the Debtor Inspection
Demand

Plaintiff seeks an order staying enforcement discovery and vacating the scheduled inspection date (April 16, 2026) pending determination of Plaintiff's Motion to Stay Execution and appellate proceedings concerning the attorney-fee order. The Court finds no basis for the relief requested by Plaintiff. Plaintiff generally cites Code of Civil Procedure sections 2017.020, 2030.090, 2031.060, 708.020, 708.030. Plaintiff has not shown that the burden, expense, or intrusiveness of the discovery clearly outweighs the likelihood that the information sought will lead to admissible evidence. Nor has Plaintiff shown unwarranted annoyance, embarrassment, oppression, or undue burden and expense. Plaintiff's general privacy arguments are unsupported. Lastly, Plaintiff moves to "vacate" an inspection demand set for April 16, 2026, pending determination of Plaintiff's motion to stay execution and appellate proceedings concerning the attorney-fee order. This request is moot given that the date of inspection has passed. Plaintiff also fails to provide any valid basis for the relief, and a motion to vacate is not the appropriate procedure.

Accordingly, Plaintiff's motion is
DENIED.